

proved, and the other three, describing themselves as *executors*, gave a letter of attorney to the fourth, describing him as *acting executor*, to receive a quantity of stock, Lord Hardwicke ruled that the whole number, by this conduct, had drawn upon themselves the burden of the executorship (*f*); and so generally, if an executor sign a power of attorney *to get in part of the testator's estate (*a*), he [*203] brings down the whole burden upon himself, though at the time of acting he disclaim the intention of assuming the office (*b*).

Acts of acceptance.—The joining in an assignment of the testator's lease (*c*), or the bringing an action on the footing of the trust (*d*), is an acceptance of the office. And an executor and trustee for sale will be deemed to have acted in the trust, if the property be expressed to be sold by direction of the trustees, and he is present, and takes part, and exercises authority or ownership by giving orders respecting the sale, and afterwards calls on a co-executor to inquire into the state of the testator's accounts (*e*).

8. Interference not acceptance, where clearly referable to another ground than acceptance.—The rule that every vol-

(*f*) *Harrison v. Graham*, 3 Hill's MSS. 239; *S. C.* cited *Churchill v. Lady Hobson*, 1 P. W. 241, note (*y*), 6th ed.; *White v. Barton*, 18 Beav. 192; *Carberry & Daly v. Cody*, 1 Ir. Rep. Eq. 76.

(*a*) *Cummins v. Cummins*, 8 Ir. Eq. Rep. 723.

(*b*) *Doyle v. Blake*, 2 Sch. & Lef. 231; but see *Malzy v. Edge*, 2 Jur. N. S. 80.

(*c*) *Urch v. Walker*, 3 M. & Cr. 702.

(*d*) *Montfort v. Cadogan*, 17 Ves. 489.

(*e*) *James v. Frearson*, 1 Y. & C. C. 370; see 375, 377. In *Orr v. Newton*, 2 Cox, 274, A., one of six executors, admitted in his answer that during the life of B., another of the executors and who had alone taken out probate, he had assisted in writing letters to the co-executors towards

collecting the testator's estate, and it was proved that A. had written on behalf of himself and his co-executors to a debtor of the testator requiring payment. Lord Camden, notwithstanding these circumstances, observed in his argument, that "B. undertook to act *solely*, and did act *solely* until he died," implying that A. had, by his conduct, not assumed the character of executor. But the case was one of "*cruel persecution*" against A.; and his Lordship put the fairest possible construction upon all that A. had done; and besides, Lord Camden might only have meant that B. was *substantially* the sole acting executor, without adverting to the question, whether the interference of A. ought or not, in strict legal construction, to be held an acceptance of the executorship.